

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ariana Thomas	Team: Squad #16	CCRB Case #: 202301046	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 01/20/2023 5:30 PM	Location of Incident: 46th Avenue between Junction Boulevard and Corona Avenue.	18 Mo. SOL 7/20/2024	Precinct: 110		
Date/Time CV Reported Mon, 02/06/2023 4:58 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Mon, 02/06/2023 4:58 PM		
Complainant/Victim	Type	Home Address			
Witness(es)	Home Address				
Subject Officer(s)	Shield	TaxID	Command		
1. PO Sergio Musso	07520	966732	110 PCT		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. DTS Heidy Cabrera	01309	956469	110 PCT		
2. PO Dilmurod Hamidov	24561	962459	110 PCT		
Officer(s)	Allegation	Inv. Div. Recommendation			
A . PO Sergio Musso	Abuse: Police Officer Sergio Musso issued an unlawful summons to § 87(2)(b)	A . Substantiated			
B . PO Sergio Musso	Abuse: Police Officer Sergio Musso searched § 87(2)(b)	B . Within NYPD Guidelines			

Case Summary

On February 6, 2023, § 87(2)(b) filed this complaint in person at the CCRB.

On January 20, 2023, at approximately 5:30 p.m., § 87(2)(b) was driving his vehicle, which did not have a front license plate, on 46th Avenue between Junction Boulevard and Corona Avenue in Queens, when Police Officer Sergio Musso, Police Officer Dilmurod Hamidov, and Detective Heidy Cabrera, all of the 110th Precinct, stopped his vehicle. PO Musso issued § 87(2)(b) an unlawful summons (**Allegation A: Abuse of Authority, Substantiated**). PO Musso searched § 87(2)(b) (Allegation B: Abuse of Authority, Within NYPD Guidelines).

§ 87(2)(b) was issued a summons for disorderly conduct (**Board Review 01**) and for improper plates (**Board Review 02**).

This case was originally assigned to Investigator David Wall and was reassigned to Investigator Ariana Thomas.

The investigation received three body-worn camera (“BWC”) videos from the NYPD Legal Bureau (**Board Review 03-05**). The investigation is not in possession of any additional video evidence.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Sergio Musso issued an unlawful summons to § 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Sergio Musso searched § 87(2)(b)

§ 87(2)(b) testified that as he was returning home from work and pulling into a parking spot, he heard a police siren. § 87(2)(b) looked into his right side mirror and noticed a marked police vehicle with its turret lights activated. § 87(2)(b) stopped trying to park and remained still for approximately 10 to 20 seconds as he waited to see if the police vehicle would pass. It did not pass, but the turret lights remained activated. However, no officers exited their vehicle or provided instructions via loudspeaker. § 87(2)(b) stepped out of his vehicle, walked to the passenger’s side, and asked if he was being pulled over. The officers sitting in the front seats of the vehicle made a gesture in the affirmative. § 87(2)(b) returned to his vehicle to finish parallel parking. As he backed up into the parking space, he was startled by a banging sound coming from the right passenger side window. § 87(2)(b) looked over and saw PO Musso, identified via the investigation, screaming at him to turn off the vehicle. § 87(2)(b) turned his vehicle off and exited. PO Musso and PO Hamidov, identified via the investigation, approached § 87(2)(b) grabbed him by the arms, turned him around, pushed him against the hood of the vehicle, and handcuffed him. The officers said, “You’re trying to flee. Why did you move your car, why did you jerk your car?” § 87(2)(b) denied trying to flee or escape. After he was handcuffed, officers searched § 87(2)(b) and confiscated his phone and keys. At that point, approximately five to six people in total, including § 87(2)(b) parents and some neighbors, gathered and observed the incident. The officers asked for § 87(2)(b) driver’s license or any other form of identification. § 87(2)(b) told them he had a photo of his license on his phone. The officers turned § 87(2)(b) property over to his parents and allowed § 87(2)(b) mother to look through his phone to find the picture of the license. The officers used this photo to verify § 87(2)(b) information. After approximately 20 minutes, officers transported § 87(2)(b) to the stationhouse. There, the officers told § 87(2)(b) had been pulled over for failing to mount a New York State license plate to the front of his vehicle. The officers told him that they arrested him because they felt unsafe with the crowd of onlookers forming and determined it would be best to process him at the stationhouse. § 87(2)(b) was issued a summons for disorderly conduct (**Board Review 01**) and for improper plates (**Board Review 02**).

In BWC footage for PO Musso (**Board Review 03**) at 00:54, PO Musso exits the front passenger's seat of a police vehicle and points towards § 87(2)(b) who briefly exits his vehicle. At 01:05, PO Musso approaches the passenger's side of § 87(2)(b) vehicle, as § 87(2)(b) pulls his vehicle forward. PO Musso knocks on the front passenger's window and § 87(2)(b) from inside his vehicle, says he is parking. Between 01:13 and 01:52, § 87(2)(b) continues parking his vehicle as PO Musso tells him that they are pulling him over. At 01:52, § 87(2)(b) exits his vehicle. At 01:54, as § 87(2)(b) closes the door, PO Hamidov grabs his left forearm. § 87(2)(b) tells PO Hamidov to, "stop fucking grabbing [him]," moves his hand away from PO Hamidov, and steps approximately one foot away from PO Hamidov. At 01:58, PO Musso asks § 87(2)(b) "Are you really causing a scene right now," grabs § 87(2)(b) right arm, and pulls it behind his back. § 87(2)(b) asks why the officers are grabbing him. At 02:20, the officers handcuff § 87(2)(b). § 87(2)(b) asks why the officers are handcuffing him. PO Musso says they pulled him over and instead of acting like a "gentleman," § 87(2)(b) caused a scene. The officers order him to produce ID. § 87(2)(b) says his ID is on his phone. At 05:40, PO Musso searches § 87(2)(b). At 07:05, approximately three civilians approach the officers. At 07:30, PO Musso tells the civilians to go onto the sidewalk. They comply. Between 08:00 to 09:55, PO Musso approaches § 87(2)(b) vehicle, which does not have a front license plate affixed to it and appears to type into phone, though his screen is not captured. No civilians approach PO Musso or are heard in the background. At 09:55, PO Musso approaches approximately four civilians who are standing on the sidewalk and tells them to take step back. The civilians comply. § 87(2)(b) mother speaks with Det. Cabrera near the police vehicle. At 10:41, § 87(2)(b) mother moves to the sidewalk, where she stands quietly. At 11:00, PO Musso walks to the front of § 87(2)(b) vehicle and appears to type on his phone, though the screen is not visible. The civilians remain on the sidewalk. At 12:36, PO Musso approaches Det. Cabrera, who tells him that § 87(2)(b) "client ID" is valid and that she ran his information. At 13:11, PO Musso says, "I say we just bring him to the command, and, at the bare minimum, we write a C for discon or for not complying with us during a traffic stop." The officers transport § 87(2)(b) to the stationhouse and lodge him in a holding cell.

PO Musso's testimony was generally consistent with the BWC footage (**Board Review 07**). He testified that the officers were driving on Alsteyne Avenue, when PO Musso observed § 87(2)(b) operating a vehicle that did not have a front license plate on Junction Boulevard. PO Hamidov was the operator and PO Musso was seated in the front passenger's seat. PO Musso directed PO Hamidov's attention to § 87(2)(b) vehicle, so the officers followed behind § 87(2)(b) on Junction Boulevard. § 87(2)(b) turned right onto 46th Avenue, at which point the officers activated their vehicle's turret lights and sirens but did not order § 87(2)(b) to stop his vehicle over the police vehicle's loudspeaker. Approximately 15 seconds later, § 87(2)(b) pulled over halfway down the block on 46th Avenue. PO Musso and § 87(2)(b) both exited their respective vehicles and § 87(2)(b) yelled something unclear. § 87(2)(b) ignition was still on and the vehicle was far from the curb. PO Musso, who remained standing next to the police vehicle, told § 87(2)(b) that he was being pulled over and ordered him to get back inside the vehicle, where officers would speak to him. § 87(2)(b) complied. The remaining officers exited the police vehicle, at which point § 87(2)(b) began maneuvering his vehicle forward and back. PO Musso did not know what § 87(2)(b) was doing and thought that he was trying to flee from the scene. PO Musso knocked on the front passenger's window and ordered § 87(2)(b) to park the vehicle. § 87(2)(b) continued to move his vehicle forward and back, seemingly to get his vehicle closer to the curb and at some point, yelled, "I'm parking it."

Once § 87(2)(b) exited his vehicle, PO Hamidov put out his hand and gestured for § 87(2)(b) to step forward. § 87(2)(b) aggressively swatted PO Hamidov's hand away but did

not take any other action. The officers then handcuffed § 87(2)(b) and placed him under arrest for disorderly conduct. § 87(2)(b) violated the “physical touch” part of the disorderly conduct statute. § 87(2)(b) created public inconvenience, annoyance, and alarm by fighting and threatening. § 87(2)(b) did not make any unreasonable noise, use obscene gestures or language in public, disturb a lawful assembly, congregate in a public place with individuals and refuse to disperse, create any hazardous or physically offensive conditions that served no legitimate purpose, nor did he obstruct vehicular or pedestrian traffic. The officers conducted an on-scene investigation and as they were doing so, approximately five to 15 civilians, including § 87(2)(b) mother, other family members, and neighbors, came out of a residential building and approached them. The civilians approached the side of the police vehicle, stood on the street, tried to put their cameras into the vehicle, and got very close to the officers. The officers still had not issued § 87(2)(b) any summons, so PO Musso decided to take § 87(2)(b) back to the stationhouse, where they could do so in a safe environment. The crowd made PO Musso feel unsafe because they were loud, asking the officers questions, not letting the officers do their investigation, and were congregating on top of the officers despite multiple commands to step back. PO Musso was trying to run information on his phone and people were coming up to him and asking why he was being arrested, what was going on, and what the officers were doing there, so he was unable to focus. PO Musso made the decision to remove § 87(2)(b) to the stationhouse because of the crowd and the fact that § 87(2)(b) was under arrest for disorderly conduct. The officers issued § 87(2)(b) a summons for not having a license plate and disorderly conduct at the stationhouse and he was released. When presented with Det. Cabrera’s BWC footage (**Board Review 05**), PO Musso maintained that § 87(2)(b) was considered under arrest as soon as he swatted PO Hamidov’s hand away, that the crowd was impeding his investigation and yelling, and he did not wish to amend his testimony.

Det. Cabrera’s statement was generally consistent with PO Musso’s (**Board Review 08**). When presented with the summons for disorderly conduct, Det. Cabrera testified that she was not present when PO Musso issued the summons to § 87(2)(b). § 87(2)(b) could have been issued a summons for disorderly conduct because he was yelling and refusing to put his arms behind his back. § 87(2)(b) did not obstruct traffic.

The summons for disorderly conduct (Penal Law § 240.20(6)) (**Board Review 01**), issued by PO Musso, notes that § 87(2)(b) recklessly caused a risk of public alarm and annoyance by refusing a lawful order when being pulled over by a marked police vehicle with active turret lights and that he ignored multiple commands from officers to stop moving his vehicle and to park it.

The 110th Precinct Command Log (**Board Review 17**), notes § 87(2)(b) arrest at 5:13 p.m. and his release with a summons at 6:05 p.m.

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

New York State Penal Law, Section 240.20 states that a person is guilty of disorderly conduct when, with the intent to cause public inconvenience, annoyance, or alarm, or recklessly creating a risk thereof, 1) he engages in fighting or in violent, threatening behavior, or 2) he makes unreasonable noise, or, 3) in a public place, he uses abusive or obscene language, or makes an obscene gesture, or 4) without lawful authority, he disturbs any lawful assembly or meeting of persons, or 5) he obstructs vehicular or pedestrian traffic, or 6) he congregates with other persons in a public place and refuses to comply with a lawful order of the police to disperse, or 7) he creates a hazardous or physically offensive condition by an act which serves no legitimate purpose (**Board Review 10**).

People v. Baker, 20 N.Y.3d 354, states that, “critical to a charge of disorderly conduct is a finding that defendant’s disruptive statements and behavior were of a public rather than an individual dimension” (**Board Review 11**). People v. Weaver, 16 N.Y.3d 123, states that, “a person may be guilty of disorderly conduct only when the situation extends beyond the exchange between the individual disputants to a point where it becomes a potential or immediate public problem” (**Board Review 12**).

The criminal summons for disorderly conduct revealed that § 87(2)(b) was cited for subsection 6, congregating with other persons in a public place and refusing to comply with a lawful order to disperse. However, based on the BWC footage and officer testimony § 87(2)(g)

§ 87(2)(b) was alone when the officers initially stopped him, the officers did not instruct § 87(2)(b) to disperse, nor did they testify that they wanted § 87(2)(b) to disperse. § 87(2)(g)

Furthermore, the BWC footage captures § 87(2)(b) informing the officers that he was parking his vehicle, which was a few feet away from the curb, and doing so within approximately one minute of the initial order to do so. § 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **Substantiated**.

After an arrest has been effected and a prisoner has been handcuffed, officers are to immediately field search/frisk the prisoner. NYPD Patrol Guide, Procedure 208-03 (**Board Review 13**).

§ 87(2)(g) it is recommended that **Allegation B** be closed as **Within NYPD Guidelines**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**Board Review 14**).
- PO Musso has been a member of service for four years and has been a subject in one CCRB complaint and three allegations, all of which were substantiated.
 - Case #202100050 involved substantiated allegations of discourtesy. The Board recommended Charges and the NYPD has not yet imposed discipline. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of August 11, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (**Board Review 15**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 16

Investigator: Ariana Thomas Inv. Ariana Thomas 09/25/2023
Signature Print Title & Name Date

Squad Leader: Patrick Yu IM Patrick Yu 09/25/2023
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date